

Form No: HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

Case No. W.P. No.28913 of 2025

SYMPL Energy Pvt Ltd. **Versus** Presiding Officer, etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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14.05.2025	Barrister Hammad-ur-Rehman Mazari assisted by Mr. Saif Ahmed Qureshi and Mr. Mohammad Hassan Shaigan, Advocates for the petitioner.
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A claim was filed by respondent No.2, namely Dr. Anwar Aman (“**the respondent**”), against the present petitioner under Section 25 of the Punjab Consumer Protection Act, 2005 (“**the Act**”). The complaint was filed on 24.08.2024. The petitioner raised a preliminary objection that the complaint was barred by limitation, and also filed an application under Section 35 of the Act seeking summary dismissal of the complaint. The said application was dismissed by the Trial Court, through the impugned order dated 18.03.2025.

2. Learned counsel for the petitioner submitted that the limitation period for filing a complaint under Section 28 of the Act is thirty (30) days from the arising of cause of action, as interpreted by the Hon’ble Supreme Court of Pakistan in case of Pak Suzuki Motors Company Limited through Manager v. Faisal Jameel Butt and another (**PLD 2023 SC 482**). He further submitted that since the goods were delivered to the respondent on 05.05.2024, the issuance of a legal notice dated 31.07.2024 followed by

filing of the complaint was hopelessly time-barred, and therefore, the complaint was liable to be dismissed, summarily, in terms of Section 35 of the Act.

3. Arguments heard. Record perused.

4. Section 28 of the Act reads as under:

“28. Settlement of Claims: (1) A consumer who has suffered damage, or Authority in other cases, shall, by written notice, call upon a manufacturer or provider of services that a product or service is defective or faulty, or the conduct of the manufacturer or service provider is in contravention of the provisions of this Act and he should remedy the defects or give damages where the consumer has suffered damage, or cease to contravene the provisions of this Act.

(2) The manufacturer or service provider shall, within fifteen days of the receipt of the notice, reply thereto.

(3) No claim shall be entertained by a Consumer Court unless the consumer or the Authority has given notice under subsection (1) and provides proof that the notice was duly delivered but the manufacturer or service provider has not responded thereto.

(4) A claim by the consumer or the Authority shall be filed within thirty days of the arising of the cause of action:

Provided that the consumer court, having jurisdiction to hear the claim, may allow a claim to be filed after thirty days within such time as it may allow if it is satisfied that there was sufficient cause for not filing the complaint within the specified period.

Provided further that such extension shall not be allowed beyond a

period of sixty days from the expiry of the warranty or guarantee period specified by the manufacturer or service provider and if no period is specified one year from the date of purchase of the products or providing of service.”

(Emphasis supplied)

There is no cavil to the legal position that the limitation period provided under Section 28 (4) of the Act, for filing a claim, is 30 days from the date of accrual of cause of action. However, the said period of limitation is not so absolute as to leaving no room for filing claim beyond the stipulated period of 30 days as evident from the first proviso to Section 28(4), which vests discretion within the Court to allow a claim to be filed within such time as the Court may allow if it is satisfied that there was sufficient cause for not filing the complaint within the specified period. Similarly, the second proviso lays down an upper ceiling of 60 days from the expiry of warranty or guaranty and if no period is specified one year from the date of purchase of the product or providing of services. Thus, the legislature in its wisdom has conferred discretion for extending the limitation for filing of a claim beyond the stipulated period of 30 days. Suffice to observe that such discretion is to be exercised in judicial manner. In the present case, it is not denied that a contractual warranty clause existed. The case of Pak Suzuki Motors supra relied upon by the petitioner is hardly of any help to the case of the petitioner as the August Supreme Court while upholding the view of this Court rendered in case reported as Muhammad Ashraf Vs. Sheikh Muhammad Akram etc. (2022 CLD 638) enunciated that the statutory period of 30

days is to run from the date of accrual of cause of action. However, the said case, by no means denuded the Trial Court from its discretionary power of extension of limitation period vested under the law. In present case, the respondent also filed an application for condonation of delay, asserting that negotiations were ongoing between the parties regarding compensation. These facts render the limitation as a mixed question of law and fact, which cannot be adjudicated in summary manner, without recording of evidence. Hence, case of Pak Suzuki Motors supra is not applicable, on account of distinguishable facts.

5. Moreover, the Trial Court declined to dismiss the complaint summarily under Section 35 of the Act. In this context, it is imperative to emphasize that Section 35 of the Act pertains to dismissal of claims and reads as under:

“35. Dismissal of frivolous or vexatious claims.— Where a claim is found to be frivolous or vexatious, the Consumer Court shall dismiss the claim and impose fine on the claimant up to an amount not exceeding ten thousand rupees for having willfully instituted a false claim and shall award appropriate compensation to the defendant from the amount of fine so realized.”

This provision is aimed at curbing baseless or malicious complaints. The terms “frivolous” and “vexatious”, as used in Section 35 of the Act, carry distinct legal connotations. According to Black’s Law Dictionary (Tenth Edition by Bryan A. Garnder) a “frivolous” action is one that lacks any legal basis or merit and often brought to harass or embarrass the opposing party and a “vexatious” proceeding, similarly, refers to one instituted without probable cause, primarily intended to cause inconvenience

or expense to the defendant. This Court is of the opinion that such terms do not encompass matters where there exists a genuine legal issue, even if that issue pertains to limitation. A complaint that is barred by time may ultimately fail on legal grounds, but it does not, on that count become frivolous or vexatious when relationship of customer-service provider is admitted. Claims that are hit by limitation must be addressed under the scheme provided in Section 28 of the Act. A complaint that may be time-barred is not *per se* frivolous. Rather, it must be tested on the touchstone of whether there is sufficient cause for condonation under the first or second proviso to Section 28(4) of the Act. The conjunctive reading of section 28 and 35 of the Act brings forth that claims which are frivolous and vexatious are to be dismissed and does not encompass within its purview such cases where the Court below is vested with the discretion to extend limitation provided by the law. Thus, the Trial Court was justified in holding that the plea of limitation cannot be resolved without examining the application for condonation of delay.

6. The matter is admittedly pending for reconciliation between the parties. Therefore, this Court refrains from making any further observation, lest it prejudice the trial proceedings. However, it is clarified that at the time of final adjudication, the Trial Court shall consider whether the explanation furnished in the application for condonation of delay meets the standard under Section 28 of the Act; render a reasoned finding on the applicability of the limitation periods contemplated

thereunder and its extension; and determine, whether the complaint of the respondent is within time. Accordingly, this petition is **dismissed** in *limine*.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting

Judge

Maqsood